



Terms and Conditions

Effective date: 4 October 2026 · Last updated: 4 October 2026

Terms and Conditions of Use

1. Introduction and Acceptance

Designlynk ("the Platform", "we", "us") is an online marketplace that connects independent engineering and CAD professionals ("Professionals") with individuals and organisations seeking engineering design services ("Clients"). Professionals and Clients are together referred to as "Users".

By creating an account, browsing, or using any part of the Platform, you accept these Terms and Conditions in full. If you do not agree, you may not use the Platform.

2. Definitions

- "Platform" means the Designlynk website and application, and all related services.
 - "Professional" means a person who offers engineering, CAD, or related design services through the Platform.
 - "Client" means a person or organisation who engages a Professional through the Platform.
 - "Engagement" means a specific project, job, or scope of work agreed between a Client and a Professional.
 - "Service Fee" means the commission retained by Designlynk from payments processed through the Platform.
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3. Nature of the Platform

Designlynk provides technology that allows Clients and Professionals to find one another, communicate, agree on the scope and price of an Engagement, and process payment. Designlynk is not a party to any Engagement. The contract for services formed when a Client and Professional agree to work together is a direct contract between the Client and the Professional alone.

Designlynk does not: assign work to Professionals, set or approve their working hours, dictate the methods, tools, or location used to complete work, supervise the day-to-day performance of any Engagement, or restrict a Professional from working with other clients, on other platforms, or in other employment.

Designlynk's role is limited to: operating the technology platform, verifying Professional credentials at sign-up, providing dispute-support tools, and processing payments (including holding funds in escrow via Stripe until work is approved by the Client).

4. Platform Availability ("As Is")

The Platform is provided "as is" and "as available." Designlynk does not guarantee uninterrupted or error-free operation, and features (including the Library, Studio, or Academy-type functionality) may be added, modified, limited, or withdrawn at any time as the Platform develops. This does not affect any Engagement already agreed between a Client and Professional at the time of a change.

5. Independent Contractor Status — No Employment Relationship

This clause is fundamental to the relationship between Designlynk and every Professional using the Platform, and must be read carefully.

Professionals are independent, self-employed contractors. Nothing in these Terms, in the operation of the Platform, or in any communication from Designlynk creates or is intended to create an employment relationship, a contract of service, a temporary employment services (labour broker) arrangement, an agency relationship, a partnership, or a joint venture between Designlynk and any Professional.

Consistent with this, and as a condition of using the Platform, every Professional confirms that:

- They determine their own working hours, work location, and the methods and tools used to complete an Engagement;
- They may accept or decline any Engagement offered through the Platform at their sole discretion;
- They are free to offer services to other clients, through other platforms, or to hold other employment simultaneously, without restriction from Designlynk;
- They provide their own equipment, software licences, and workspace, and bear their own operating costs;
- They are responsible for their own registration for tax, VAT (where applicable), and any required professional or trade licences;
- Designlynk does not deduct PAYE, UIF, or any other employee-related statutory deduction from payments made to Professionals, and does not contribute to any Professional's

pension, medical aid, or similar benefit;

- They carry their own professional indemnity risk in respect of the quality and delivery of their work, save as otherwise agreed directly with a Client.

6. Account Suspension and Termination

Because no employment relationship exists, Designlynk does not conduct disciplinary hearings, issue warnings under any labour code of good practice, or "dismiss" Professionals. Access to the Platform is governed solely by these Terms as a commercial agreement.

Designlynk may suspend or terminate a User's account, with or without notice, for reasons including: breach of these Terms, fraudulent or misleading conduct, repeated failure to fulfil agreed Engagements, conduct that harms the safety or trust of the Platform community, or non-payment of Service Fees.

Termination or suspension of a Platform account affects only a User's access to the Platform's technology and marketplace. It has no bearing on, and does not constitute, any form of employment termination, dismissal, or retrenchment, because no such relationship exists to be terminated.

7. Engagements Between Clients and Professionals

When a Client and Professional agree to proceed with an Engagement, they form a direct contract for services between themselves. Designlynk provides a standard Engagement template for convenience, but the specific scope, deliverables, timeline, and price are negotiated and agreed between the Client and Professional directly.

Professionals are solely responsible for the quality, accuracy, and timely delivery of their work product. Clients are solely responsible for providing clear requirements and timely feedback.

8. Fees and Payment

Payments for Engagements are processed through Stripe. Funds paid by a Client are held in escrow and released to the Professional upon Client approval of the deliverable, or in line with any milestone schedule agreed in the Engagement.

Designlynk retains a Service Fee of between 10% and 20% of the Engagement value, deducted automatically from the payment via Stripe's application fee mechanism, as a commission for facilitating the Engagement. This Service Fee is a marketplace commission, not a wage, salary, or any form of employee remuneration.

Professionals are responsible for declaring income earned through the Platform to the relevant tax authorities and for any applicable VAT registration and invoicing obligations.

9. Cross-Border Payments

Where a Client and Professional are located in different countries, payment amounts may be subject to currency conversion, and the final amount received may differ from the amount paid due to exchange rates and processing fees applied by Stripe or intermediary banks. Designlynk is not responsible for delays, deductions, or account holds caused by cross-border payment processing, foreign exchange controls, or the payment processor's own compliance checks.

Each User is responsible for any tax withholding, declaration, or reporting obligation arising from cross-border payments in their own country of residence.

10. Third-Party Services

The Platform relies on third-party services, including Stripe for payment processing. Designlynk is not liable for the acts, omissions, downtime, or account decisions (such as holds or freezes) of any third-party service provider. Use of such services may also be subject to that provider's own terms and conditions.

11. No Exclusivity or Restraint

Professionals are never required to work exclusively through Designlynk, are free to decline any Engagement without penalty, and are free to use competing platforms. No minimum number of hours, Engagements, or availability is required to retain an account in good standing.

12. Non-Circumvention

Users agree not to use the Platform to identify a Client or Professional and then complete, invoice, or pay for the resulting Engagement outside the Platform, for the purpose of avoiding the Service Fee. This restriction applies for the duration of the Engagement and for twelve (12) months after a Client and Professional are first introduced through the Platform, unless Designlynk agrees in writing to release the parties from this obligation.

Users who breach this clause may have their accounts suspended and may be liable to Designlynk for the Service Fee that would otherwise have been earned, calculated on the value of the off-platform work.

13. Eligibility and Verification

Users must be at least 18 years old and have the legal capacity to enter into binding contracts to use the Platform.

Designlynk takes reasonable steps to verify Professional identity, qualifications, and stated experience at sign-up and on an ongoing basis, but does not guarantee the accuracy of any Professional's claimed credentials, nor the quality, timeliness, or suitability of any work delivered. Clients are responsible for satisfying themselves, including through the Platform's review and portfolio features, that a Professional is suitable for an Engagement before proceeding.

14. Prohibited Conduct

Users may not: create fake or duplicate accounts; misrepresent their identity, qualifications, or the nature of an Engagement; use the Platform to solicit users for unrelated commercial purposes; harass, threaten, or discriminate against another User; upload unlawful, infringing, or malicious content; or attempt to manipulate ratings, reviews, or search rankings.

Breach of this clause may result in immediate suspension or termination of a User's account, in addition to any other remedy available to Designlynk.

15. Cancellation and Refunds

A Client may cancel an Engagement before work has commenced for a full refund of any funds held in escrow. Once work has commenced, cancellation and any partial refund is subject to the cancellation terms agreed between the Client and Professional for that specific Engagement, and Designlynk will release escrowed funds in line with that agreement or, failing agreement, in line with its standard dispute-support process.

Service Fees already earned on work completed prior to cancellation are non-refundable.

16. Ratings and Reviews

Clients and Professionals may rate and review one another following completion of an Engagement. Reviews must be honest and based on direct experience. Designlynk may remove reviews that are fraudulent, abusive, or in breach of this clause, but is not obliged to remove a review solely because the subject of the review disagrees with it.

17. Intellectual Property

Unless otherwise agreed in writing as part of an Engagement, ownership of work product created by a Professional for a Client transfers to the Client upon full payment. Designlynk claims no ownership over any work product created between Users.

Designlynk retains all rights in the Platform itself, including its software, design, trademarks, and the Designlynk name and logo.

18. Confidentiality

Users agree to keep confidential any proprietary or sensitive information shared in the course of an Engagement, and to use it only for the purpose of completing that Engagement.

19. Data Protection (POPIA)

Designlynk processes personal information in accordance with the Protection of Personal Information Act, 2013 (POPIA). Personal information collected at sign-up and through use of the Platform is used only to operate the Platform, facilitate Engagements, process payments, and comply with legal obligations, and is not sold to third parties.

Users may request access to, correction of, or deletion of their personal information held by Designlynk, subject to any legal obligation Designlynk has to retain it. Full detail is set out in Designlynk's separate Privacy Policy, which forms part of these Terms by reference.

20. Limitation of Liability and Indemnity

Designlynk is not liable for the acts, omissions, work quality, or conduct of any Professional or Client, as Designlynk is not a party to any Engagement. Users indemnify Designlynk against any claim arising from an Engagement between them, including any claim that seeks to characterise the relationship between Designlynk and a Professional as one of employment.

To the fullest extent permitted by law, Designlynk's total liability to any User arising from use of the Platform is limited to the Service Fees paid by that User in the three (3) months preceding the claim.

21. Force Majeure

Neither Designlynk nor any User is liable for any failure or delay in performance caused by circumstances beyond their reasonable control, including load-shedding, network or internet outages, natural disaster, civil unrest, or governmental action.

22. Dispute Resolution

Any dispute between Designlynk and a User concerning these Terms, or the commercial relationship between them, will first be referred to good-faith negotiation, and failing resolution, to arbitration under the rules of the Arbitration Foundation of Southern Africa (AFSA), seated in Cape Town, South Africa. This clause reflects the parties' agreement that the relationship is commercial in nature and does not fall within the jurisdiction of the CCMA or the Labour Court.

Disputes between a Client and a Professional arising from an Engagement are between those parties directly; Designlynk may offer voluntary dispute-support tools but is not obliged to adjudicate such disputes.

23. Governing Law

These Terms are governed by the laws of the Republic of South Africa.

24. General Provisions

Severability: if any clause of these Terms is found unenforceable, the remaining clauses continue in full force.

Assignment: Designlynk may assign its rights and obligations under these Terms in connection with a merger, acquisition, or sale of assets. Users may not assign their rights under these Terms without Designlynk's written consent.

Entire agreement: these Terms, together with the Privacy Policy and any Engagement-specific terms, constitute the entire agreement between Designlynk and a User regarding use of the Platform.

Survival: clauses relating to indemnity, confidentiality, intellectual property, non-circumvention, and limitation of liability continue to apply after a User's account is closed or these Terms otherwise terminate.

Notices: any formal legal notice between Designlynk and a User is validly given if sent by email to the address registered on the User's account, or to Designlynk's registered contact address.

Language: these Terms are drawn up in English. Where translated into another language for convenience, the English version prevails in the event of any conflict.

25. Amendments

Designlynk may update these Terms from time to time. Material changes will be notified to Users through the Platform. Continued use of the Platform after such notice constitutes acceptance of the updated Terms.

26. Contact

Questions about these Terms can be directed to: support@designlynk.co.za.

